



File No.: EXP202306259

## SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On 09/03/2021, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a claim is made against ANIVERSALIA NETWORKS, S.L. with NIF B12535183 (hereinafter, ANIVERSALIA), for a possible breach of the provisions of personal data protection regulations.

In the complaint, the following is stated regarding the matter of personal data protection:

"I want to report that the website aniversalia.com does not have any published email, phone number, or other contact information where I can reach out to exercise my rights of access, rectification, cancellation, and opposition regarding the personal data that this company may have, which are published on Google, namely my name and surname and an alleged date of birth that is incorrect. Additionally, I would like to add that I have contacted nicline and arsys sl, the company where the domain 'aniversalia.com' is registered, in order to obtain some contact information or where I could direct my request to exercise my ARCO rights; they have confirmed that this domain exists but have not provided me with how to contact the owners of the domain aniversalia.com. I am attaching emails." Attached is a copy of the exchanged emails with the companies where the domain "aniversalia.com" is registered and a copy of the contact form from the website www.aniversalia.com completed by the complainant.

SECOND: In light of the reported facts, this Agency verified that the website www.aniversalia.com as of 14/04/2021 continued to not adapt its Privacy Policy to the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR). Under the heading "Legal Notice and Privacy Policy," divided into four sections, it states the following: "In compliance with the provisions of Organic Law 15/99, of December 13, on the Protection of Personal Data, we inform you that the data you provide us by completing this form will become part of a file owned by ANIVERSALIA NETWORKS S.L. for the management of USERS and in accordance with our privacy policy. We also inform you that you can exercise the rights of access, rectification, cancellation, and opposition at the headquarters of ANIVERSALIA NETWORKS S.L. Calle Alloza, 109 -, 12001 Castellón Spain."

In the second section, it adds: "At ANIVERSALIA, we are committed to protecting your privacy. You can visit most of the pages of our site without

2/18

"provide us with any information about you. However, sometimes we need information to offer the requested services, and this privacy statement explains the collection of data and its use in those situations..."

In the third section ("Personal Information"), reference is made to the collection, use, control, access, and security of personal information collected through the website www.aniversalia.com; while the fourth section is dedicated to the Cookie Policy.

Additionally, access was obtained to the Commercial Registry to learn the general data of ANIVERSALIA, which shows an address different from that indicated in the Privacy Policy, as well as to the Whois registry, where NICLINE.COM appears as the registrant of the domain www.aniversalia.com, along with ARSYS INTERNET, S.L.

Finally, this Agency verified that the profile of the claimant continues to be active on the website www.aniversalia.com, where their personal data can be accessed, specifically their name and surname, age, province, and country.

THIRD: Prior to the admission of this claim for processing, the Agency forwarded it to ANIVERSALIA on 21/04/2021, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD). Two notification attempts were made, first electronically and then by postal mail, without ANIVERSALIA collecting either of the two notifications.

FOURTH: The Director of the Spanish Agency for the Protection of Data agreed to admit the claim presented by the claimant on 29/06/2021.

FIFTH: On 15/09/2021, this Agency accessed the website [www.aniversalia.com](http://www.aniversalia.com), confirming, on one hand, that ANIVERSALIA is responsible for the website and, on the other hand, that its Privacy Policy remains the same as that stated in the "Facts" section, second point, of this agreement.

Regarding the collection of personal data, the website has two forms, a contact form and a registration form. The first allows anyone to make inquiries they deem appropriate, requiring them to complete the corresponding form that collects the name and email as mandatory fields. The registration form, for its part, only collects the personal data of those who wish to create a profile on the website, requiring the entry of name and surname, email address, gender, date of birth, country of residence, and province of residence; but not the mobile number or an alternative email address. Furthermore, to register properly, it requires acceptance of the "Aniversalia Service Conditions," which state, among other issues, the following:

- "The transfer of personal data and its exchange with other users is inherent to the service. Given the nature of the service, the user accepts that certain personal data provided by themselves is processed automatically by Aniversalia and made available to other users, for the purposes and under the conditions of the service."

C/ Jorge Juan, 6  
[www.aepd.es](http://www.aepd.es)  
28001 – Madrid  
[sedeagpd.gob.es](mailto:sedeagpd.gob.es)  
3/18

-

"The user agrees that their access to the portal and/or its services may be canceled, without prior notice, unilaterally by Aniversalia, and therefore agrees that Aniversalia may deactivate or delete their account and all information and files related to it and deny them access to such files or the service. The user agrees that Aniversalia reserves the right to cancel accounts that are inactive for an unreasonable period of time and that Aniversalia will not assume any responsibility for the cancellation of their access to the service."

SIXTH: On 22/09/2021, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ANIVERSALIA for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR; concluding said proceedings with the issuance of a Resolution by the Director of the Spanish Agency for Data Protection on 10/11/2021, imposing an administrative fine of €2,000 (two thousand euros) on ANIVERSALIA for an infringement of the aforementioned provision.

Furthermore, it was required that, within ten working days from the notification of the resolution, it provide evidence to this agency of the adoption of measures to facilitate information to the individuals whose personal data it collects, in accordance with the provisions of Article 13 of the GDPR.

SEVENTH: On 15/09/2022, ANIVERSALIA filed a motion for reconsideration against the Urgent Provision issued by the Director of the Spanish Agency for Data Protection on 21/07/2022 for the collection of the sanction by the State Agency for Tax Administration through executive means. In the document, it states, in summary, the obligation that, in its opinion, this Agency had to carry out notifications to the representative of ANIVERSALIA, with the consequent defenselessness (Article 167.c) of the General Tax Law).

On 18/11/2022, the Director of the Spanish Agency for Data Protection agreed to uphold the appeal filed and, consequently, annul the procedure from which it originates, PS/00346/2021. The resolution issued is not based on the grounds of opposition alleged by ANIVERSALIA but on the fact that "The AEPD, not having knowledge of an email address of the sanctioned party to communicate the availability of the electronic notification, should have notified the first communication (initiation agreement) in paper," in accordance with Article 43.2 of Royal Decree 203/2021, of March 30, which approves the Regulation of action and operation of the public sector by electronic means.

EIGHTH: On 24/03/2023, the Director of the Spanish Agency for Data Protection agreed to initiate the present sanctioning procedure, PS/00688/2022, against ANIVERSALIA, in accordance with the

provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP through electronic notification, was delivered to ANIVERSALIA on 06/04/2023.

NINTH: On 21/04/2023, ANIVERSALIA submitted a document, in due time and form, to this Agency in which it stated the following:

"[...]"

THIRD.- As soon as we received the present requirement ps/688/2022, we proceeded to cancel/delete the personal data, as can be seen, and they are also already canceled on 'Google'. (...)

FOURTH.- To date, we have no record of such a cancellation request, so in light of this statement, we are investigating the present incident, as there are no incidents due to the simple process for proceeding with the deletion and/or cancellation of users' personal data.

FIFTH.- Regarding the privacy policy in accordance with the GDPR.

As we have been informed by the AEPD, that the privacy policy is not compliant with the GDPR, the truth is that it complies with the proven content according to Articles 12 and 13, except for the legislative mention, which we are proceeding to rectify, and this is so, since the wording used in our privacy policy exceeded the legality in force with the LOPD 1999, being in accordance with the subsequent LOPD 2018 and GDPR 2016. Furthermore, we have already been complying with the application of express consent to process users' personal data, through a checkbox to continue.

"[...]"

Attached is the following documentation:

- Screenshot of what was in its database before the cancellation of the personal data of the complainant and afterwards.
- Screenshots of the process of accessing the user profile and the mechanism to "Unsubscribe from Aniversalia."

TENTH: On 10/05/2023, the instructing body of the procedure agreed to open a period of evidence, considering the complaint filed by the complainant and its documentation, as well as the allegations to the initiation agreement PS/00688/2022 presented by ANIVERSALIA and the documentation accompanying them.

It also agreed to verify the content of the Privacy Policy of the website <https://www.aniversalia.com>, having accessed it on 10/05/2023.

ELEVENTH: On 12/09/2023, the instructing body prepared a proposal for resolution in which it proposed to sanction with a fine of €2,000.00 to

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

5/18

ANIVERSALIA, for the infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

Also, in accordance with Article 58.2.d) of the GDPR, it was proposed that, within ten working days from the date on which the resolution agreeing to this is notified to it, ANIVERSALIA prove that it has updated the Privacy Policy on its website, [www.aniversalia.com](http://www.aniversalia.com), to comply with current regulations, specifically Article 13 of the GDPR.

The proposed resolution was made available to ANIVERSALIA through electronic means on 12/09/2023, with the automatic rejection of the notification occurring on 23/09/2023, as recorded in the acknowledgment of receipt in the file.

On 06/10/2023, ANIVERSALIA submitted a written response, in due time and form, to this Agency in which it stated the following:

"[...]"

We are unaware of how the complainant requested the cancellation of their personal data on the 'aniversalia' website, as we have checked and no cancellation request appears in the system, nor

have we received any cancellation request via email. The fact is that there is an address (...), and we must emphasize that the user can unsubscribe automatically from the website; the process for this is (...).

SECOND.- The applicable regulations have been updated, and the communication addresses have been expanded, complying with the requirement of the AEPD, according to the GDPR, not understanding the “vague” statements made, as none of the stated headings are carried out, nor are the data processed, nor transferred, nor retained; once unsubscribed, they are deleted.

THIRD.- Regarding the privacy policy in accordance with the GDPR.

As we have already mentioned, as soon as we were informed by the AEPD that the privacy policy was not compliant with the GDPR, the truth is that it complies with the content approved according to Articles 12 and 13, except for the legislative mention, which we proceed to rectify, as the wording used in our privacy policy exceeded the legality in force with the LOPD 1999, being in accordance with the subsequent LOPD 2018 and GDPR 2016. Likewise, we have already been compressing with the application of express consent to process the personal data of users, through a checkbox to continue. [...]

FOURTH.- Furthermore, on July 24, 2023, the website <http://aniversalia.com> was deactivated, so we consider any requirement made regarding its content to be fulfilled.

C/ Jorge Juan, 6  
[www.aepd.es](http://www.aepd.es)  
28001 – Madrid  
[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

6/18

FIFTH.- At no time has Aniversalia denied the cancellation of the complainant's data; it has not been proven that the cancellation request was received, nor its sending to the address reflected on the website. However, the personal data of the complainant was canceled; moreover, in July 2023, the website was closed, with the data being forgotten.

SIXTH.- As soon as we received the present requirement ps/688/2022, we proceeded to unsubscribe by canceling/deleting the personal data, as can be observed; likewise, they are already canceled in “Google”. (...)”

Attached is the following documentation:

- Copy of an email dated 24/07/2023 at 14:00, with the subject “RE: Data,” in which B.B.B. is copied. \*\*\*EMAIL.1.

- Screenshot of the website [aniversalia.com](http://aniversalia.com)

In light of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

#### PROVEN FACTS

FIRST: On 14/04/2021, the content of the Privacy Policy of the website <https://www.aniversalia.com> is as follows:

##### “1. LOPD

In compliance with the provisions of Organic Law 15/99, of December 13, on the Protection of Personal Data, we inform you that the data you provide us by filling out this form will become part of a file owned by ANIVERSALIA NETWORKS S.L. for the management of USERS and in accordance with our privacy policy. We also inform you that you can exercise your rights of access, rectification, cancellation, and opposition at the headquarters of ANIVERSALIA NETWORKS S.L. Calle Alloza, 109 -, 12001 Castellón, Spain.

##### 2. Privacy Statement of ANIVERSALIA

At ANIVERSALIA, we are committed to protecting your privacy. You can visit most pages of our site without providing us with any information about yourself. However, sometimes we need information to provide the requested services, and this privacy statement explains the collection of data and its use in those situations. This privacy statement only applies to ANIVERSALIA.com; it does not apply to other products, services, or sites of ANIVERSALIA available online or offline. Read the complete privacy statement of ANIVERSALIA.com. This website is directed to individuals over 18 years of age.

### 3. Personal Information

#### a) Collection of personal information

When we need information that personally identifies you (personal information) or that allows us to contact you, we will ask you. The

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/18

Personal information collected by ANIVERSALIA.com is often limited to the email address, language, and country or location, although it may include other information when necessary to provide the requested service.

For example: if you choose a service or transaction that requires payment, such as making a purchase, we will ask you for personal information necessary for billing and shipping, such as: name, address, phone number, and credit card number.

When you purchase a product, we may ask you to register your purchase electronically. We store this information along with the information you have already provided during previous visits to our website.

ANIVERSALIA also collects certain information about the hardware and software of the equipment.

This information may include: IP address, browser type, operating system, domain name, access times, and referring website addresses. This information is used for the operation of the service, in order to maintain its quality and to provide general statistics about the use of ANIVERSALIA.com.

ANIVERSALIA also collects information about the pages that our USERS visit on ANIVERSALIA.com. This site visit data is identified with a unique identification number and is never linked to personal information unless a user gives their consent as described below.

#### b) Use of personal information

Personal information is used for the following purposes:

- To ensure that the site meets your needs.
- To provide services, such as USER management, newsletters, events, information, or services that you have requested or purchased.
- To help us create and publish content that is relevant to you.
- To alert you about product and service updates, special offers, updated information, and other new services from ANIVERSALIA.com if you request it.
- To allow you access to limited entry areas of our site as necessary.

ANIVERSALIA may disclose your personal information if it is required to do so by law or if it believes in good faith that such action is necessary to: (a) comply with the law or legal process mandates related to ANIVERSALIA or the site; (b) protect and defend the property rights of ANIVERSALIA and its family of websites; or (c) act in urgent circumstances to protect the personal safety of ANIVERSALIA employees, users of ANIVERSALIA products or services, or members of the public.

Information may be stored and processed in any other country where ANIVERSALIA or its affiliates, partners, or agents have facilities. By using this site, you consent to such transfer of information outside your country.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/18

ANIVERSALIA is subject to the framework of the LOPD and the LSSI as well as to the countries that have legislation similar to that of Spain.

#### c) Control of personal information

When you register or provide us with personal information, ANIVERSALIA does not share that information with third parties without your permission, except for the limited exceptions that have already been indicated. It will only be used for the purposes mentioned above.

ANIVERSALIA may periodically send emails with information about security issues or technical service

related to a requested product or service, or as confirmation of a product or service request. You cannot unsubscribe from these messages as they are considered an essential part of the chosen service.

SECOND: On 15/09/2022, the content of the Privacy Policy of the website <https://www.aniversalia.com> is identical to that indicated in the previous section.

THIRD: On 10/05/2023, the content of the Privacy Policy of the website <https://www.aniversalia.com> is as follows:

#### “1. LOPD

In compliance with the provisions of REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016, we inform you that the data you provide us by completing this form will become part of a file owned by ANIVERSALIA NETWORKS S.L. for the management of USERS and in accordance with our privacy policy. We also inform you that you can exercise the rights of access, rectification, cancellation, and opposition, as well as the other rights set forth in the aforementioned regulation, for which you must contact the headquarters of ANIVERSALIA NETWORKS S.L. Calle Alloza, 109 -, 12001 Castellón, Spain. Attaching a photocopy of the identity document or by email to [datos@aniversalia.com](mailto:datos@aniversalia.com).

#### 2. Privacy Statement of ANIVERSALIA

At ANIVERSALIA, we are committed to protecting your privacy. You can visit most pages of our site without providing us with any information about yourself. However, sometimes we need information to provide the requested services, and this privacy statement explains the collection of data and its use in those situations. This privacy statement only applies to ANIVERSALIA.com; it does not apply to other products, services, or sites of ANIVERSALIA available online or offline. Read the complete privacy statement of ANIVERSALIA.com. This website is directed to individuals over 18 years of age.

#### 3. Personal Information

##### a) Collection of personal information

When we need information that personally identifies you (personal information) or that allows us to contact you, we will ask you for it. The personal information collected by ANIVERSALIA.com is often limited to the email address, language, and country or location, although it may include other information when necessary to provide the requested service.

For example: if you choose a service or transaction that requires payment, such as making a purchase, we will ask you for personal information necessary for billing and shipping, such as: name, address, phone number, and credit card number.

When you purchase a product, we may ask you to register your purchase electronically. We keep this information along with the information you have already provided during previous visits to our website. ANIVERSALIA also collects certain information about the hardware and software of your device. This information may include: IP address, browser type, operating system, domain name, access times, and referring website addresses. This information is used for the operation of the service, in order to maintain its quality and to provide general statistics about the use of ANIVERSALIA.com.

ANIVERSALIA also collects information about the pages that our USERS visit on ANIVERSALIA.com. This site visit data is identified with a unique identification number and is never linked to personal information unless a user gives their consent as described below.

##### b) Use of personal information

Personal information is used for the following purposes:

- To ensure that the site meets your needs.
- To provide services, such as USER management, newsletters, events, information, or services that you have requested or purchased.
- To help us create and publish content that is relevant to you.
- To alert you about product and service updates, special offers, updated information, and other new services from ANIVERSALIA.com if you request it.
- To allow you access to limited entry areas of our site as necessary.

ANIVERSALIA may disclose your personal information if it is required to do so by law or if it believes in good faith that such action is necessary to: (a) comply with the law or legal process related to ANIVERSALIA or the site; (b) protect and defend the property rights of ANIVERSALIA and its family of

websites, or (c) act in urgent circumstances to protect the personal safety of ANIVERSALIA employees, users of ANIVERSALIA products or services, or members of the public.

Information may be stored and processed in any other country where ANIVERSALIA or its affiliates, partners, or agents have facilities. By using this site, you consent to such transfer of information outside your country.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
10/18

ANIVERSALIA is subject to the framework of the LOPD and the LSSI as well as to the laws of countries that have legislation similar to that of Spain.

c) Control of personal information

When you register or provide us with personal information, ANIVERSALIA does not share that information with third parties without your permission, except for the limited exceptions already indicated. It will only be used for the purposes mentioned above.

ANIVERSALIA may periodically send emails with information about security issues or technical service related to a requested product or service, or as confirmation of a product or service request. You cannot unsubscribe from these messages as they are considered an essential part of the chosen service.

d) Access to personal information

You will be provided with means to ensure that your personal information is correct and up to date.

e) Security of personal information

ANIVERSALIA is committed to protecting the security of your personal information. We use various technologies and security procedures to protect your personal information from unauthorized access, use, or disclosure. For example, we store the personal information provided on servers with limited access located in controlled facilities. When we transmit important information (such as credit card numbers) over the Internet, we protect it by encrypting it with protocols such as Secure Socket Layer (SSL).

We inform you that ANIVERSALIA may provide personal information to the competent authorities when required to do so, in accordance with current legislation.

FOURTH: Identified as responsible for the website [www.aniversalia.com](http://www.aniversalia.com) is ANIVERSALIA NETWORKS, S.L., with NIF

FIFTH: On 24/07/2023, the entity representing ANIVERSALIA received an email at the address \*\*\*EMAIL.1, with the following content:

“Hello C.C.C.,

What has been done is to deactivate the website. It can be seen at: <http://aniversalia.com/>. User data no longer appears.

If you search on Google, they still appear, but this will be removed as soon as Google re-indexes [aniversalia.com](http://aniversalia.com) and does not find those pages.

If you enter the search engine (...) and click on the links, you will see that it gives an error.

I'm not quite sure how you want to communicate this to the users who request the deactivation.

Regards. D.D.D.”

SIXTH: Currently, it is proven that when accessing the website [aniversalia.com](http://aniversalia.com) the following message appears:

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

11/18

“Aniversalia says goodbye! We regret to inform you that the Aniversalia website has closed. We thank all our users for their support and loyalty over the years. If you have any questions or concerns, you

can find us at the following location:

Address: Ronda Mijares, 11, C.P.: 12001, Castellón, Spain”

## LEGAL GROUNDS

I

### Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

### Preliminary issues

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines “personal data” as: “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

Article 4.2 of the GDPR defines “processing” as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction.”

Therefore, in accordance with the above definitions, it is established that there is processing of personal data, since ANIVERSALIA collects personal data through the contact and registration forms available on its website [www.aniversalia.com](http://www.aniversalia.com).

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)

12/18

III

### Claims Made

In relation to the claims made regarding the initiation agreement of the present sanctioning procedure, responses were provided.

Firstly, ANIVERSALIA claims not to have received any request for the cancellation of personal data from the complainant, but has proceeded to deactivate the user. It provides a screenshot that proves the deactivation processed in its system concerning the personal data of the complainant.

In this regard, this Agency wishes to remind ANIVERSALIA that the facts reported by the complainant are precisely related to the lack of information when exercising their rights regarding personal data protection. This is why the complainant has not been able to submit any deletion request, as they do not know to whom or how to proceed.

Secondly, ANIVERSALIA claims to have adapted the Privacy Policy of the website to current regulations, modifying the legislative mention of the LOPD; without prejudice to the fact that the content does comply with current regulations.

In this regard, this Agency wishes to point out that ANIVERSALIA, as the data controller, is obliged to provide its users with all the information listed in Article 13 of the GDPR. While it is true that it has replaced the mention of the LOPD in the Privacy Policy with that of the GDPR, the content does not detail point by point the issues that comprise the duty of information of the aforementioned provision.

The information contained in the section “Legal Notice and Privacy Policy” of the website in question is



quite vague, as it is not concise regarding the issues that each heading should cover. Specifically, it does not provide detailed information about the identity of the data controller, nor about the recipients of the data collected in the event of transfer or communication. Moreover, it does not mention either the retention period of the collected data or the legal basis that legitimizes such processing. In relation to the claims made regarding the proposed resolution of the present sanctioning procedure, responses are provided.

ANIVERSALIA emphasizes that it has not received any request for cancellation from the complainant and that it has proceeded to adapt the legislative mention of the Privacy Policy to current regulations, without prejudice to the fact that the content does comply with it.

In this regard, this Agency reiterates its response to the claims presented regarding the initiation agreement of the present sanctioning procedure.

On the other hand, ANIVERSALIA claims that in July 2023 it deactivated the website <http://aniversalia.com> and, as proof, provides a screenshot of the search conducted on the internet.

C/ Jorge Juan, 6  
[www.aepd.es](http://www.aepd.es)  
28001 – Madrid  
[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

13/18

In this regard, this Agency wishes to point out that, indeed, the website in question is inoperative. However, during the period when it was accessible, the entity collected personal data through its contact and registration forms, and when processing such data, it was obliged to inform its users of all the issues listed in Article 13 of the GDPR.

Furthermore, this Agency wishes to remind that the adoption of measures does not imply the rectification of the infringing conduct of the aforementioned article. It is evident that, before the initiation of the sanctioning procedure, ANIVERSALIA did not comply with its obligation to correctly inform its clients.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to ANIVERSALIA for violation of Article 13 of the GDPR.

IV

#### Transparency in the Processing of Personal Data

The processing must be governed by the principles outlined in Article 5 of the GDPR, which states: "Personal data shall be:

a) Processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency');  
(...)."

A manifestation of the principle of transparency is the obligation incumbent upon data controllers to inform, in the terms of Article 13 of the GDPR, the data subject when personal data is obtained directly from them:

"1. When personal data is obtained from a data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) The identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;

C/ Jorge Juan, 6  
[www.aepd.es](http://www.aepd.es)  
28001 – Madrid  
[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to adequate or appropriate safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this regard, Recital 60 of the GDPR states that "The principles of fair and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any supplementary information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of failing to do so."

V

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes an infringement classified under Article 83.5.b) of the GDPR, which under the heading "General conditions for imposing administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)"

For the mere purposes of limitation, Article 72.1 h) of the LOPDGDD classifies as very serious "The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law." The limitation period for very serious infringements provided for in the LOPDGDD is three years.

VI

## Sanction for the infringement of Article 13 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified period - Article 58.2 d).

According to Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

16/18

In the present case, considering the facts presented, it is deemed that the sanction to be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and deterrent, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved in accordance with Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, in relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

17/18

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may

also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have contributed to the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

The balance of the circumstances considered allows for the imposition of a fine of €2,000.00 (two thousand euros) for the infringement of Article 13 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on ANIVERSALIA NETWORKS, S.L., with NIF B12535183, for an infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR, a fine of €2,000.00 (two thousand euros).

SECOND: TO NOTIFY this resolution to ANIVERSALIA NETWORKS, S.L.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

18/18

Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, through its payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Once the notification is received and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from

the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

938-250923  
Mar España Martí  
Director of the Spanish Agency for Data Protection  
C/ Jorge Juan, 6  
[www.aepd.es](http://www.aepd.es)  
28001 – Madrid  
[sedeagpd.gob.es](http://sedeagpd.gob.es)